

Opinion of the Court

Mitchell Court held that this kind of summary judgment order was, in a sense, “effectively unreviewable,” for review after trial would come too late to vindicate one important purpose of “qualified immunity”—namely, protecting public officials, not simply from liability, but also from standing trial. *Mitchell, supra*, at 525–527. For related reasons, the Court found that the order was conclusive, *i. e.*, it “conclusively” settled the question of the defendant’s immunity from suit. 472 U. S., at 527.

The Court in *Mitchell* found more difficult the “separability” question, *i. e.*, whether or not the “qualified immunity” issue was “completely separate from the merits of the action,” *supra*, at 310. The Court concluded that:

“it follows from the recognition that qualified immunity is in part an entitlement not to be forced to litigate the consequences of official conduct that a claim of immunity is *conceptually distinct* from the merits of the plaintiff’s claim that his rights have been violated.” *Mitchell, supra*, at 527–528 (emphasis added).

And, the Court said that this “conceptual distinctness” made the immediately appealable issue “separate” from the merits of the plaintiff’s claim, in part because an

“appellate court reviewing the denial of the defendant’s claim of immunity need not consider the correctness of the plaintiff’s version of the facts, nor even determine whether the plaintiff’s allegations actually state a claim. All it need determine is a question of law: whether the legal norms allegedly violated by the defendant were clearly established at the time of the challenged actions or, in cases where the district court has denied summary judgment for the defendant on the ground that even under the defendant’s version of the facts the defendant’s conduct violated clearly established law, whether the law clearly proscribed the actions the defendant claims he took.” *Id.*, at 528 (footnote omitted).